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UNIVERSITY OF PORT HARCOURT
FACULTY OF LAW

CRIMINAL LAW I

MODULE 7:- PARTIES TO AN OFFENCE

According to the Black's Law Dictionary, a party is a person concerned or having or taking part in any affair, matter, transaction or proceeding considered individually. Thus, parties to any given crime are the persons who participated in the commission of the crime. This will necessarily include those involved in the planning, counseling, supporting, encouraging and execution. In UK, parties to a criminal offence are sometimes described as principal in the first degree, principal in the second degree, accessory before the fact, etc. But in Nigeria, ours appears different. Under section 7 of the Criminal Code, there are basically two types of parties to an offence in Nigeria, namely, ① Principal offenders and ② Accessories after the fact. The Criminal Code equally gave four different classes of principal offenders under the same section 7, but this classification is merely cosmetic or academic as anyone found guilty under any of the said four different classes is simply convicted as a principal offender. It is instructive that the Penal Code equally follows the same pattern by classifying parties simply as principal offenders and abettors. Section 83 of the Penal Code provides the details of an abettor and they are simply in consonance with the provisions of section 7 of the Criminal Code.

In the United States for instance, an accomplice is a distinctly recognized party to a offence. Under their law, an accomplice is one who knowingly, voluntarily and with common intent unites with other actors in the commission of the offence. In *MCCLENDON v. UNITED STATES*. Cca Mon. 19 F 2d, an accomplice was defined as one who is in some way concerned or associated in the commission of the crime. But note that such a person described as an accomplice under the law in the United States is wholly subsumed as a principal offender under section 7 of our Criminal Code.

Principal Offenders under Nigerian Law

Section 7 of the Criminal Code provides as follows in respect of parties to an offence:

"When an offence is committed, each of the following persons is deemed to have taken part in committing the offence and can be guilty of the offence and may be charged with actually committing it:

- (a) Every person who actually does the act or makes the omission which constitutes the offence.
- (b) Every person who does or omits to do any act for the purpose of enabling or aiding another person to commit the offence.

- (c) Every person who aids another person in committing the offence.
(d) Any person who counsels or procures any other person to commit the offence".

Parties under Section 7(a) of the Criminal Code – (Every person who actually does the act or makes the omission which constitutes the offence).

This classification is clear and unambiguous. It refers to the hands or individuals who actually effected or carried out the criminal offence involved. For instance, where somebody was murdered through stabbing, this provision simply refers to the particular person or persons who raised their hands and actually stabbed him with the murderous weapons. A person will also be guilty under this subsection whether he commits the act with his own hands or with the hands of an innocent agent like an infant, lunatic or subordinate. The innocent agent who knew nothing of the evil intention but simply obeyed his superior will hardly be culpable. For instance where A an adult, instructs B his brother who is a minor to go to the house of C and collect the clothes spread outside which he obeys and was subsequently arrested by C, because B is an innocent agent who had no guilty mind, he cannot be liable for stealing, rather, it is A who actually perpetrated the crime using the hands of B. The case that clearly illustrates this point is R v. IDIONG & UMO (1950) 13 WACA 30. In this case, Idiong who intended to procure an abortion on a lover, induced Umo, a native doctor to administer herbs to that his lover who died after taking the herbs. The West African Court of Appeal took the view that from the available evidence, Umo's sole intention was to relieve the pain of the woman with his herbs and not to abort her pregnancy which led to her death. The Court therefore held that Umo was not criminally liable being an innocent agent and that it was Idiong who was solely liable as he committed the unlawful act using the hands of Umo who knew nothing about it. Note that where an innocent agent is shown to have full knowledge of the intention to commit the offence in question, he ceases to be an innocent agent and automatically becomes a co-party to the offence.

Where a person is shown to be the perpetrator or mastermind of an act, his mere absence at the point of commission does not exonerate him. An instance of this is where a time-bomb is planted in a car which exploded after the offender left the scene or where a person poisons the food served on the dining table and thereafter proceeds to the garden whilst the food was being eaten by his victim.

Parties under Section 7(b) of the Criminal Code – (Every person who does or omits to do any act for the purpose of enabling or aiding another person to commit the offence).

The assistance contemplated by this subsection is to be done or given before the commission of the crime. An offender under this place is identical with an accessory before the fact under English law. Such assistance include loaning a person a gun, rope or tool which he could use to commit a criminal offence

or giving him information about a premises he intends to invade and commit a crime.

The pertinent question to examine under this section is whether there is a duty to show or prove that the assistance given actually aided or enabled the commission of the offence. In other words, where a person gave an assistance with in no way assisted or aided in the commission of the offence, will he still be liable under this subsection? It is noteworthy that the courts have taken the position that from the wordings of the subsection, a person will still be liable even if his act of assistance was of no actual help afterall. For instance, if A makes a hole in the wall of a compound to enable his friend B to steal from a house, and B gets in by climbing over the wall instead, then A had surely done an act for the purpose of enabling another to commit an offence and will be liable under subsection 7(b) even though the act was actually of no help to the thief. It should be noted that a person may be liable under this subsection even if his act of assistance was unknown to the actual criminal. Thus, it is submitted that the words "any act" in subsection 7(b) is wider in scope than that in subsection 7(c) as the latter is directly restricted to acts which actually aided the commission of the offence charged.

Note that section 7(b) removes liability from a person who was merely present at the scene of crime but did nothing whatsoever. In other words, it must be shown that his act was facilitating the commission of an offence. Thus, in *AKANNI v. R* (1959) WRNLR 153 the members of a crowd who stood by and watched a house burn, knowing that an old woman was locked inside it, were held not liable as participants under section 7(b) of the Code. As was held in the Ghanaian case of *AZUMAH v. R* (1950) 13 WACA 87 "*Mere presence is not enough. A person must be purposely facilitating or aiding the commission of a crime by his presence, before he can be regarded as an accomplice*". Note however that the exception to this is where it is shown that the party owes a duty to use his position to prevent the commission of the offence and his omission to do so may tantamount to a support or facilitation of the commission of the said offence. A case in point is the popular case of the *ALUU 4* where the paramount King of Aluu was also charged for the murder of the four students by his omission to discourage the lynching of the students by the irate mob. He was discharged because the Court was satisfied that he clearly directed the mob to take the boys to the Police but they later refused.

Parties under Section 7(c) of the Criminal Code - Every person who aids another person in committing the offence.

Unlike subsection 7(b), the assistance under subsection 7(c) of the Criminal Code must be given simultaneously with the commission of the offence. In other words, it envisages assistance given which aided the commission of the offence. Thus, it is compulsory under this subsection to establish that the assistance given actually aided the commission of the offence charged. See *ENWEONYE v. R* (1955) 15 WACA 1. Here, a dispute arose over fishing nets between the occupants of two canoes in a river. Those in one shot those in the other, and their clansmen on the river bank helped to carry the bodies

away. The only evidence against the third appellant was that he was on the bank at the time and that a call was made to him to pursue one of the disputants. The West African Court of Appeal held that the third appellant was not sufficiently near to give assistance in the struggle on the water. In the words of that Court *"We are of the opinion that to bring a person within this section (s.7 (c)), there must be clear evidence that ... the appellant did something to facilitate the commission of the offence"*.

It is noteworthy that it is sometimes problematic under this subsection to determine whether an assistance was given during or after the commission of the offence. Two examples will drive home this point. First, under section 383(6) of the Criminal Code, the offence of stealing is not complete unless the person who is fraudulently taking or converting the thing actually moves it or otherwise deals with it by some physical act. In *R v. JOHNSON* (1973) Qd. R 303, X had broke into a shop and started sealing the goods therein, loading them into a big bag he came with. Upon seeing someone approaching the shop, D knocked on one of the windows and signaled to X to leave. X did so, taking with him the goods he had already packed into his big bag. D was convicted as a party under subsection 7(c) . The argument that the offence was complete before the aid was given was rejected by the Queensland Court. Also in cases of rape, section 6 of the Criminal Code provides that rape is complete upon penetration. The question to be asked is will assistance given to a rapist who had achieved penetration but whilst still in the act of sexual intercourse make the person aiding a party to the offence of rape? In the case of *MAYBERRY* (1973) QDR 211 the majority of the Queensland Court held that the act does not conclude at the instance of penetration, but continues at least as long as penetration lasted. But in the dissenting opinion of Skerman, LJ at page 286 of the report, he held that both by the authority of the Code and decided cases, the offence of rape is complete upon penetration, and since the assistance was given after penetration had already been achieved, the defendant was not guilty as a party under subsection 7(c).

A person is not a party to an offence merely because he was present at the scene of crime and did not do anything to prevent it. For there to be a criminal liability under this head, it must be established in evidence that the accused or his presence at the scene was to give assistance or encouragement by word or action. See *AKANNI v. R* (supra); *AZUMAH v. R* (supra). A person may however be held to be a principal offender merely by being present at the scene in so far as his presence and omission to act constitute an intentional aid. See *RUSSELL v. R* (1933) VLR 59 where a man stood by while his wife committed suicide by drowning. It was held that he had by his non-interference shown his assent to his wife's purpose and so was guilty of manslaughter.

One question that has proved difficult to solve is that dealing with whether a man can be held guilty of assisting or aiding the commission of a crime that has not been committed. Where the aider is charged alone, he could properly

be convicted under section 7(c) of the Criminal Code as a party, even though the person who actually committed the offence with his own hands was still at large. See *STATE v. NWAOGA* (1970-71) Vol.1 ECLSR 17 at 19. But it is quite a different thing where all the parties were tried together and the court discharges the actual culprit who was allegedly assisted by the aider. Thus, in *R v. OKAGBUE* (1958) 3 FSC 27, three men were charged with the offence of house breaking and two were found not guilty, while the third was convicted of aiding them. The Federal Supreme Court relying on the statement of the Court of Criminal Appeal in *R v. ROWLEY* (1948) 1 ALL E.R. 570 allowed the appeal and held that the aider cannot be guilty where the persons allegedly aided have all been discharged. In the said *R v. ROWLEY* (supra), it was held that it would be absurd to say that the accused assisted and comforted persons whom he knew had committed a felony when they had not in fact committed such an offence. Okonkwo and Naish posits that where the charge states that the accused has assisted a named principal, he cannot be convicted if the named principal is acquitted, but where he is charged simply with aiding in the commission of an offence and the principal is not named, then he can be convicted under section 7(c) even though the others may have been acquitted for committing that offence.

Where the person aided is not criminally responsible in the case of an insane man or a child, will section 7(c) apply? In this case, section 7(c) may not be invoked because no offence in law may have been committed. But note that section 7(d) will apply where the accused procured one who is not criminally responsible to commit the offence.

*** Parties under Section 7(d) of the Criminal Code – Any person who counsels or procures any other person to commit the offence**

Under this head, a person is liable only for the offence which he has consciously counseled or procured. In *R v. BAKER* (1909) 28 NZLR 536, it was held that the word "counsel" is probably equivalent to "instigate". Note the similarity between section 7(b) – for those who do or omit to do any act for the purpose of enabling or aiding the commission of an offence - and section 7(d) for those who counsel and procure any other person to commit the offence.

Under section 7(d), the words of counseling and procuring must involve some positive acts of encouragement to those who commit the offence. In *R v. IDIKA* (1959) 4 FSC 106, it was held that tacit acquiescence or words amounting to a bare permission are not enough. The Court went further to state as follows: *"If members of a society meet, and being faced with orders to kill a particular man, they decide unanimously to obey these orders, each member present at the meeting encourages his fellows to kill the victim"*.

In *R v. UKPE* (1938) 4 WACA 141, it was held that the mere presence of the accused at a meeting where murder was instigated does not make a man an accessory before the fact to the particular murder committed in consequence thereof. The West Africa Court of Appeal said they were unable to see how the evidence that was tendered before the court showed that the appellant did counsel or procure another person to commit the offence, as he was not the

person who directed that an Okon man should be killed but was rather one of those to who the order was given. Okonkwo & Naish are of the opinion that the case of IDIKA may be distinguished on the ground that the agreement to kill appears to have occurred just before the killing, but in UKPE, the agreement was of a uncertain nature and the time of carrying it out was never specified.

A person in authority who orders his subordinate to commit any offence can be held guilty of counseling and procuring. Thus, in *AJAO v. ALKALI AMODU* (1960) RNLR 8, an Alkali who ordered a policeman to slap an accused for contempt of court was held guilty of assault under section 7(d).

The absence of the person who has counseled or procured the commission of an offence from the scene of crime is immaterial to his criminal liability. In *IDIKA's Case*, the court held as follows:- *"If ten men plan and encourage each member (of the society) to kill A on Saturday, and the plan fails, and five of the ten kill A on Sunday in pursuance of the original agreement to kill, it seems to me that the five who took no active part in the killing are yet responsible for the killing. They were among those who lit the fuse. Having lit it, they let it burn with the results which they desired"*. But note that if any of the party makes an unequivocal timely communication of his intention to countermand his earlier counsel or encouragement, he may not be held guilty under section 7(d) of the Criminal Code.

Mens Rea Under Section 7 of the Criminal Code

The first thing to note under this heading is that section 7 does not contain any mens rea denoting term. This however does not mean that the section has imposed strict liability. This point was more emphatically established by the Queensland Court of Criminal Appeal in *R v. SOLOMON* (1959) Q.D.R. 123 that section 7 of the Queensland Criminal Code which is in pari material with our section 7 must be read with section 23 of their code which is identical with section 24 of our Code in order to determine the mens rea that would suffice for accessorial liability. The Court held that section 7 is not intended to create responsibility for unwilled acts arising out of a plan or concert

Furthermore, in *POULTERY FARMERS CO-OPERATIVE SOCIETY LTD v. GRAIN SORGHUM MARKETING BOARD* (1963) Q.W.N. 3 at 12, the Full Court held that "Under our law, subject to any special statutory provision, the criminal responsibility of principal for his servants acts must be determined solely by the provisions of the Code. Section 7 makes responsible for the principal offender's offence the aider, the enabler, the procurer and the counselor and none other. Section 23 relieves a person of criminal responsibility for an act which occurs independently of the operation of his will". See also *JOHNSON v. YODEN* (1950) 1 KB 544 where it was held

thus: "Before a person can be convicted of aiding and abetting the commission of an offence, he must at least know the essential matters which constitute that offence".

Prof. Vukor-Quarshie in an article titled: "Mens rea and Complicity I the Criminal Code of Nigeria", has cogently argued for secondary parties as follows: "It is our view that under the Criminal Code of Nigeria, before a party is charged as a party to an offence via complicity, it must be established that such a party possess mens rea in the sense that not only did he had knowledge of the principal actor's mens rea, but also that he intended by his act or omission to help the principal actor". Discussing the same issue of mens rea under section 7 of the Criminal Code, Okonkwo & Naish point out that an act of assistance such as the loan of a matchete cannot make a man a party if merely he knew it was going to be used in the commission of an offence. He must intend the commission of the said offence. So, if a man lends another an instrument for the purpose of committing a certain crime and that other commits an entirely different crime with the aid object, the lender can only be liable under the provision of section 8 of the Criminal Code and not section 7 because the different crime constitutes an act independent of the exercise of his will pursuant to section 24 of the Criminal Code. But where the crime is materially similar to the one intended by the enabler or aider, there might be liability under section 7(b).

Difficulties might arise in determining the extent to which a secondary party should be liable for consequences not foreseen by him. What is the liability of a vendor who sells with the knowledge that the subject of sale would be used in the commission of a crime? In *R v. BRAINBRIDGE* (1960) 1 Q.B. 129, it was held that it was not enough to prove that a man knew that some crime was intended. The Court went further to hold that it is not altogether easy to lay down any precise form of words which will cover every case that can be contemplated, but it must be proved that there was knowledge of the type of crime intended and committed.

In the opinion of Okonkwo & Naish, once there is positive proof that the facts of the crime committed constitute the actual type of crime intended by the aider and enabler, then there is liability under section 7(b) irrespective of the fact that the secondary party did not know the precise details for carrying out the crime. Under section 7(c), the prosecution must show that the aider intends to give the assistance knowing the nature of the offence being committed. See *ENWEONYE'S CASE* (supra) where the Court said that the

prosecution failed to prove the necessary intention to give the assistance. See also R v. SOLOMON (supra).

Under section 7(d), a man can only be counsel/procure the commission of the offence which he knows or intends to be committed. In other words, a person is guilty only for the actual offence which he has consciously or intentionally counseled or procured. See R v. SOLOMON (supra). A person cannot be guilty of counseling or procuring the commission of an offence which was not actually committed. The procurement continues until either the offence has been committed or it has been expressly or unequivocally revoked or countermanded. See R v. OBODO (1959) 4 FSC 106 where ADEMOLA, CJN held as follows:

"If a person joins a society of which one of its objects is murder and is present and acquiescent when a murder is carried out in pursuance of the objects of the society, it is no defence to say that he did not commit the murder with his own hands or even that he refused a command to do so, unless the circumstances of his refusal were such as to indicate a complete and final repudiation of the society which none of the present applicants can claim to have made. Even if it is true that some of them only joined the society and were present at the murder because they were threatened with death if they refused, section 32 of the Criminal Code makes it clear that this is no defence in law to a charge of murder".

The repudiation of the plan should be communicated to the other party before the commission of the crime in order to make it legally effective. See STATE v. OKAFOR (1965) NMLR 20 at 27 where the Court said that "at no time did the appellant withdraw himself from the conspiracy to the knowledge of his confederates".

Accessory after the Fact (After the commission)

By section 10 of the Criminal Code, a person who receives or assists another who is to his knowledge of an offence, in order to enable him to escape punishment, is said to become an accessory after the fact to the offence. Whereas a principal offender is liable to the full punishment of the offence, an accessory on receives a minimal punishment of two years imprisonment. To be classified as an 'accessory after the fact', a party must have knowingly assisted, harboured, received and maintained an offender to enable him escape from the law. The mental element required for an accessory after the fact is knowledge of the guilt of the person assisted together with the intention to facilitate his escape from punishment. See THE STATE v. MOJEKWU (1974) ESCLR 171 at 173.

→ After the commission of offence in order to escape

→ whole of the act is during the commission of the offence. (Flee) begins when he leaves the scene of the offence. The CD comes into play

Note that the main exception to the operation of section 10 of the Criminal Code is that a wife cannot be an accessory after the fact if she assists her husband to escape punishment and this also applies to the husband. The justification for this exclusion is that husband and wife are seen as one. Note that this exception only applies to spouses of a Christian Marriage.

Common Intention – Section 8 of the Criminal Code

(common intention) (8)

One easily noticeable difference between sections 7 and 8 of the Criminal Code is that under section 8, we do not have different categories of criminal participation. Under section 8, we are concerned with determining the circumstances under which a person who has formed a common intention with others to prosecute an unlawful purpose will be liable for the offences which are committed in the prosecution of the unlawful purpose. Another difference between sections 7 and 8 of the Code is that section 8 has to do with exclusion by necessary implication of the operation of section 24 of the Criminal Code dealing with the concept of no liability without fault or for unwilled acts. We have seen under section 7 that mens ea must be established on the part of each of the four classes of principal offenders, but under section 8, all that the prosecution is required to prove is not the intention of the accused to commit the particular crime which was committed, but that the crime actually committed was a probable consequence of the prosecution of a common unlawful purpose.

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STATE V. OKAFOR

Under section 8 of the Criminal Code, if it can be shown that the accused voluntarily joined one or more persons to form a common intention to prosecute an unlawful purpose whose probable consequence would result in the commission of the crime in question, then he can properly be convicted under the section. In BRENNAN v. R (1936) CLR 253 dealing with the interpretation of section 8 under the Western Australian Criminal Code which is identical with our own section 8, the High Court of Australia held that "the expression 'offence committed of such a nature that its commission is a probable consequence of the prosecution of such purpose', fixes on the purpose which there is a common intention to prosecute. It then takes the nature of the offence actually committed. It makes complicity in that offence depend upon the connection between the prosecution of the purpose and the nature of the offence. The required connection is that the nature of the offence must be such that its commission is a probable consequence of the prosecution of the purpose."

In GARUBA v. HADEJIA NATIVE AUTHORITY (1961) NRNLR 44, two men went to rob a girl of her germs (precious stones) carrying sticks without giving her chance to surrender the germs without resistance. One of the struck her a

fatal blow from behind. Here, both parties were held guilty of manslaughter because they had set out to rob by means of violence. That is, by carrying the sticks, the clear inference was that they intended to use the sticks to facilitate the robbery and death is probable consequence of the use of violence.

Under section 8, the accused will be liable if and only if the offence committed is a probable consequence of carrying out the common purpose, and what is probable is usually a question of fact to be determined by the facts and circumstances of each case. In BRENNAN (supra), it was held that it does not follow as a matter of law that if the applicant aided and abetted the shop breaking by keeping watch outside, he was criminally responsible for the homicide committed by his confederates within. Whether it followed from the facts was a question for the jury depending on the conclusions they drew as to the nature of the plan to which he lent his aid and as to his knowledge of his confederates' intention. On the meaning of probable consequence, Stark J, (in Brennan's case) stated thus: "*A probable consequence is I apprehend that which a person of average competence and knowledge might be expected to foresee as likely to follow upon the particular act, though it may be that the particular consequence is not intended or foreseen by the actors. This is not a definition but only a guide to the exercise of common sense*".

To be liable under section 8 of the Criminal Code, four requirements must be satisfied:

- (a) A common intention to prosecute an unlawful purpose.
- (b) The intention must be in conjunction with one another.
- (c) It must relate to the prosecution of an unlawful purpose.
- (d) An offence was committed.

the four requirements!!!

i) **'A common intention to prosecute an unlawful purpose'**

Section 8 extends the criminal responsibility of persons who have formed a common intention to pursue an unlawful purpose by holding them criminally responsible for the unwilled acts of others. There is therefore a strict requirement that before a person can be held responsible for the acts of another which he has not willed, it must be established in evidence against him that he had along with others formed a common intention to prosecute an unlawful purpose. The intention to prosecute a unlawful purpose may be formed at any time. It is not compulsory that there must have been a meeting where the parties hatched their intention to act. See OFOR v. R (1955) 15 WACA 4 where the Court held as follows:

"Common intention may be inferred from the circumstances disclosed in the evidence and need not be by express agreement, but a presumption of a

common design to effect the felonious purpose if necessary by use of violence, the first three appellants ought to have been acquitted.

Note that each case must be considered in the light of its peculiar facts in considering whether the accused persons acted in concert. See *AMOO v. R* (1959) 4 FSC 113. Here, the court held that *"any member who joined it with full knowledge of the common intention was equally guilty of the murder of the deceased. In this case, it was obvious that the intention of the crowd was to kill, hence common intention was accordingly imputed on the part of the accused"*.

We must also endeavour to discover whether or not there is a common intention in each case, and whether the offence committed was a probable consequence of that intention. See *OFFOR v. R* (supra).

ii) 'In conjunction one with another'

Here, there must be proof of a common intention to prosecute the common unlawful purpose jointly and together. See *R. v. UKPE* (supra) where the Court held that section 8 of the Criminal Code was inapplicable since the agreement was one to act severally rather than jointly. In *R v. BENSON* (1970) QWN 27, it was held that if there is a common intention to prosecute an unlawful purpose in conjunction with one another, actual conjunction in the commission of the offence charged as a probable consequence of the prosecution of the unlawful purpose need not be proved under section 8 of the Code.

iii) 'And in prosecution of such purpose'

An accused person who shows that the offence charged was committed by his confederates outside the scope of the prosecution of the unlawful purpose would be exculpated from liability under section 8 of the Criminal Code. See *ONIIYORO v. R* (1959) NRNLR 103.

iv) 'An offence was committed'

Once an offence which can be described as a probable consequence of the prosecution of a common intention between the parties is committed, then it is irrelevant which of the accused persons did what. See *ALAGBA v. R* (supra).

common intention should not be too readily applied. That proof of common intention is a condition precedent to conviction in this type of case is appreciated when it is remembered that if a combination of this kind is proved, a fatal blow though given by one of the parties, is deemed in the eye of the law to have been given by all those present and aiding. The person actually delivering the blow is no more than the hand by which the others all strike...provided that what the deliverer of the blow did was a probable consequence of carrying out the common intention".

See also *BADA v. R* (1944) 10 WACA 249 where an unskilled and inexperienced lorry driver who had no effective control of the vehicle drove on the wrong side of the road and the companion of the driver who was sitting in the right hand front seat struck a cyclist who had been compelled to disembark with a stick. The cyclist died as a result. They were both charged with murder and convicted. But on appeal, the West African Court of Appeal quashed the driver's conviction. He could only be guilty if it could be shown that it was as a result of concerted action by both men that the cyclist was killed. For instance, if he had deliberately driven on the wrong side of the road so that his companion could hit the victim with the stick, such common intention was not an inescapable inference from the facts. See also *ALAGBA & ORS v. STATE* (1949) 19 LR 128. In this case, the deceased died of a spear wound. The deceased wife testified that it was the 2nd accused who first struck the deceased with a stick, but that the 3rd and 4th accused had spears and that all the accused persons (9 of them in number) had some things in their hands. The friend of the deceased said that the 4th accused was the first to strike the deceased but could not say which of the accused threw the spear on the deceased. It was held on the evidence believed by the trial Judge that the inference was irresistible that there was a common design in all the accused commencing from the moment they gathered together in one canoe and shouted their tribal war cry. Therefore, the Judge in dealing with the attack they made in concert was correct in saying that "*it does not matter which of the accused persons did what, and the cases of all the accused persons were indistinguishable*".

In *DIGBEHIN v. R* (1952) 1 All NLR 388, the Supreme Court held dismissing the appeal that if two or more men set out to steal and one of them is known by the others to be armed with a lethal weapon, all of them may be held criminally responsible for the consequences which result from the use of the weapon by one of them who carried it, even if there is no clear evidence to show that there was any express pre-concerted agreement. But in *ONUEGBU v. R* (1958) 2 FSC 10, it was held that as the evidence clearly negated a